

25VECV06308 25VECV06308

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-03

Motion: THE SRE DEFENDANTS' MOTION FOR A NEW TRIAL AND FOR AN ORDER VACATING THE SPECIAL VERDICT AND JUDGMENT

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Case Number: 25VECV06308 Hearing Date: August 3, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ANGELIKA REYN, an individual,

Plaintiff,

vs.

MIKHAIL SIRETSKIY, an individual; MARINA SIRETSKIY, an individual; SIRETSKIY REAL ESTATE INC., a California corporation; VYACHESLAV SIRETSKIY, an individual; IDA SIRETSKIY, an individual; BELONA PROPERTY MANAGEMENT, LLC, a California limited liability company; and DOES 1-10, inclusive,

Defendants.

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CASE NO: 23VECV05504

[TENTATIVE] ORDER RE: THE SRE DEFENDANTS' MOTION FOR A NEW TRIAL AND FOR AN ORDER VACATING THE SPECIAL VERDICT AND JUDGMENT

Dept. U

8:30 a.m.

August 3, 2026

BACKGROUND

This case is an action arising from a purportedly fraudulent investment transaction filed by Plaintiffs Angelika Reyn ("Reyn") and Yevgeniy Kerbis ("Kerbis") against Defendants Mikhail Siretskiy ("Mikhail"); Marina Siretskiy ("Marina"); Siretskiy Real Estate Inc. ("SRE"); Vyacheslav Siretskiy ("Vyacheslav"); Ida Siretskiy ("Ida"); and Belona Property Management, LLC ("Belona").

On December 12, 2023, Plaintiff Reyn filed her complaint against Defendants, alleging: (1) breach of contract; (2) fraud; and (3) violations of Penal Code section 496.

On March 28, 2024, the Clerk entered Mikhail's default.

On September 30, 2024, Plaintiffs Reyn and Kerbis filed their first amended complaint (the "FAC") against Defendants, alleging: (1) breach of contract; (2) fraud; and (3) violations of Penal Code section 496.

On March 19, 2026, Judge Valerie Salkin commenced a jury trial in this matter.

On April 2, 2026, the jury returned an award in favor of Plaintiffs.

On May 8, 2026, Judge Salkin held a prove-up as to Mikhail, who was in default.

Also on May 8, 2026, Judge Salkin entered a judgment in favor of Plaintiffs.

On May 11, 2026, SRE, Mikhail, and Marina filed their motion for a new trial.¹

On June 8, 2026, Belona filed its notice of intent to move for a new trial and notice of motion to vacate or modify the judgment.

Also on June 8, 2026, Ida, Vyacheslav, and Belona filed a second notice of intent to move for a new trial and notice of motion to vacate or modify the judgment.

On June 10, 2026, SRE, Mikhail, and Marina filed a supplemental brief in support of their motion for a new trial.

On June 12, 2026, Judge Anthony Mohr granted Ida, Vyacheslav, and Belona's ex parte application for an order extending time to file supplemental briefs in support of their post-trial motions.

On June 15, 2026, Plaintiffs filed their opposition brief as to SRE, Mikhail, and Marina's new trial motion.

On June 16, 2026, SRE, Mikhail, and Marina filed their reply brief as to their new trial motion.

On June 29, 2026, Belona, Ida, and Vyacheslav filed their motion for judgment notwithstanding the verdict.

Also on June 29, 2026, Belona, Ida, and Vyacheslav filed their motion for a new trial.

On June 30, 2026, Belona, Ida, and Vyacheslav filed requests for judicial notice in support of their motions.

On July 6, 2026, SRE, Mikhail, and Marina filed a brief in support of the motion for judgment notwithstanding the verdict.

On July 10, 2026, the Court entered the parties' joint stipulation to specially set to motion for a new trial and motion for judgment notwithstanding the verdict.

On July 13, 2026, Plaintiffs filed their opposition briefs as to Belona, Ida, and Vyacheslav's motion for judgment notwithstanding the verdict and motion for new trial.

On July 14, 2026, Plaintiffs filed their opposition briefs as to SRE, Mikhail, and Marina's arguments filed in support of the motion for judgment notwithstanding the verdict and motion for new trial.

On July 16, 2026, the Court granted Mikhail, Marina, and SRE's ex parte application for an order temporarily staying enforcement of the judgment.

On July 20, 2026, SRE, Mikhail, and Marina filed their reply brief as to the motion for judgment notwithstanding the verdict.

On July 21, 2026, Plaintiffs filed their objection to SRE, Mikhail, and Marina's reply brief as to the motion for judgment notwithstanding the verdict.

On July 22, 2026, Belona, Ida, and Vyacheslav filed their reply briefs.

RULING

The motion for a new trial and for an order vacating the special verdict and judgment filed by SRE, Mikhail, and Marina (hereafter, the "SRE Defendants") is denied.

The hearings on the motion for judgment notwithstanding the verdict and the motion for a new trial filed by Belona, Ida, and Vyacheslav (hereafter, the "Belona Defendants") are continued. The Court extends its order temporarily staying enforcement of the judgment to the continued hearing date.

LEGAL STANDARD

Motion for New Trial

A party may move at the close of his trial that the original verdict be vacated and any other decision be modified or vacated, in whole or in part, and a new or further trial granted on all or part of the issues for any of the following causes, materially affecting the substantial rights of the moving party:¿

Irregularity in the proceedings of the court, jury, or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial;¿

Juror or jury misconduct;¿

Accident or surprise, which ordinary prudence could not have guarded against;¿

Newly discovered evidence which could not, with reasonable diligence, have been discovered and produced at the trial;¿

Excessive or inadequate damages;¿

Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law;¿

Error in law, occurring at the trial and excepted to by the party making the application.¿

See Code Civ. Proc., § 657.¿

A court deciding a new trial motion sits as a “thirteenth juror,” an independent trier of fact. *Jiminez v. Sears Roebuck & Co.* (1971) 4 Cal.3d 379, 387. The court has the power “to disbelieve witnesses, reweigh the evidence, and draw reasonable inferences therefrom contrary to” those of the jury. *Barrese v. Murray* (2011) 198 Cal.App.4th 494, 503 (Barrese) (in ruling on motion for new trial, trial court should consider credibility of witnesses independent of jury's conclusions).

The court's role on a new trial motion is more than looking for bare substantial evidence that might support affirmance on appeal; the court must weigh the evidence. *Lane v. Hughes Aircraft Co.* (2000) 22 Cal.4th 405, 415-416 (Lane). Where the court's review leads it to conclude that the jury clearly should have reached a different verdict, the court must grant a new trial. *Barrese*, *supra*, 198 Cal.App.4th at p. 504.

Motion for Judgment Notwithstanding the Verdict

“The court, before the expiration of its power to rule on a motion for a new trial, either of its own motion, after five days' notice, or on motion of a party against whom a verdict has been rendered, shall render judgment in favor of the aggrieved party notwithstanding the verdict whenever a motion for a directed verdict for the aggrieved party should have been granted had a previous motion been made.” Code Civ. Proc., § 629 (a).

DISCUSSION

The SRE Defendants move for a new trial and for an order vacating the special verdict and judgment. The SRE Defendants argue the special verdict form used at trial improperly instructed jurors that they “must answer YES” to certain liability questions based on deemed admissions.

The Court has reviewed and considered the jury instructions attached to the SRE Defendants' motion, of which the Court takes judicial notice as requested. As to matters deemed admitted against SRE, the Court instructed the jury to accept as true certain facts regarding amounts of funds received by the SRE Defendants; dates on which funds were sent; the existence of certain agreements; Marina's relationship to other parties; SRE's corporate structure; SRE's business affairs; and more. (RJN, pp. 32-34.)

The SRE Defendants concede that CACI #210 allows deemed admissions to bind the admitting party. The SRE Defendants argue, however, that “[b]ecause the verdict form did not require independent findings on each ultimate fact necessary to support each theory against each defendant, the verdict cannot support judgment under Code of Civil Procedure section 624.” (Code Civ. Proc., § 624: “The special verdict must present the conclusions of fact as established by the evidence, and not the evidence to prove them; and those conclusions of fact must be so presented as that nothing shall remain to the Court but to draw from them conclusions of law.”)

The SRE Defendants generally complain that the verdict form failed to demand certain findings regarding intent to defraud and improperly converted a basic breach of contract claim into fraud. The SRE Defendants complain that the jury form failed to ask the jury to decide whether the money was stolen property rather than the balance on an unpaid contract; whether each defendant separately received, concealed, or withheld that property; whether each defendant knew the property was stolen; whether the claim for theft of stolen property was independent of breach of contract; and whether any fraud finding rested on conduct separate from the alleged failure to pay. The SRE Defendants similarly complain that alter ego, personal liability, and punitive damages determinations fail for lack of individualized findings as against Marina and Mikhail.

The SRE Defendants complain that jury instruction #101 improperly refers to “Plaintiff Stanislav Malkov,” who is not part of this case. (RJN, pp. 8-9.) The SRE Defendants complain that during jury deliberations, the jury submitted a written question, stating, “Can we get clarification on question number thirteen of part 2.” (RJN, p. 83.) That question asks, “What is the total amount of Plaintiffs' damages caused by the fraud?” (RJN, p. 73.) The SRE Defendants argue that the combined effect of these irregularities was to deprive them of a fair trial.

Plaintiffs oppose the motion on several grounds, including that SRE is a limited liability company and thus cannot appear in pro per and because Marina was represented by counsel when she signed onto the motion filed by the SRE Defendants in pro per. Plaintiffs also complain that the motion's proof of service is defective because it's signed by parties to the action. The Court generally agrees with Plaintiffs that these are proper grounds for opposing the motion. In the interest of addressing disputes on their merits, the Court merely notes its agreement with Plaintiffs regarding these procedural defects and moves on to address the substance of the motion.

The Court has carefully reviewed the jury instructions in this case, including the jury instructions regarding deemed admissions. Contrary to the SRE Defendants' position, the deemed admissions included in the jury instructions do not require that the jury accept ultimate conclusions of law such as, e.g., "Defendants committed fraud." Rather, the Court instructed the jury to accept as true certain specific facts underlying the elements of fraud. These include that SRE and Marina had no intention of returning Reyn's money, that Marina was aware of certain facts underlying the fraudulent scheme, that money was never returned, and more. (RJN, pp. 32-34.) Taken together, the specific admissions deemed admitted support their jury's conclusion that the SRE Defendants are liable for fraud and receipt of stolen property, as they ask the jury to accept as true specific facts underlying Plaintiffs' claims rather than simply demanding that the jury accept the SRE Defendants committed fraud.

The Court agrees with Plaintiffs that the evidence submitted at trial supports the jury's findings of fraud and of receipt of stolen property independent of breach of contract. The Court also agrees with Plaintiffs that alter ego, personal liability, and punitive damages are supported by the record. Defendants received a fair trial and had a full opportunity to present evidence, cross-examine witnesses, object to instructions and the verdict form, and argue their case to a jury.

As to the jury instructions' inclusion of certain language regarding "Plaintiff Stanislav Malkov" (RJN, pp. 8-9), who is not a party to this case, the SRE Defendants fail to explain how this apparent defect in the jury instructions confused the jury. The language appears to have been erroneously included because there is separately pending another case involving Plaintiff Stanislav Malkov and the same SRE Defendants (case #22VEC01986). The language regarding Mr. Malkov is only included in that portion of the jury instructions that informs the jury how trial will proceed. The language does not appear elsewhere in the jury instructions regarding how to determine liability and damages. This error appears to be harmless, and the Court fails to see how it might have reasonably confused the jury given that it only appears in the jury instructions regarding how trial will proceed.

As to the SRE Defendants' complaint regarding the jury's submission of a question to the Court, juries commonly submit questions to the Court, which the Court answers where appropriate. Jury instruction #112 properly informs the jurors that they may write out written questions and send them to the Court via courtroom staff. The SRE Defendants identify no legal reason for why this is improper. The SRE Defendants merely draw their conclusion from the existence of a jury question that the jury was improperly confused and the verdict is tainted. The Court disagrees.

In their supplemental brief, the SRE Defendants assert, for the first time, that the RFAs were improperly deemed admitted because the discovery was served on a deleted email account. The SRE Defendants argue that the fact that their email account was deleted warrants relief from the judgment because the law only authorizes electronic service only where a transmission is completed. See Code Civ. Proc., § 1010.6 (a)(1)(B) ("transmission of a document by electronic means to the electronic service address at or through which a person receives electronic service"); see Cal. Rules of Court, Rule 2.251. The SRE Defendants present evidence showing certain emails sent to the address "" generated automatic rejection notices, which the SRE Defendants say supports their position that Plaintiffs knew the RFAs had not been delivered to their intended recipient. (Mikhail decl., ¶¶ 5-8.)

The SRE Defendants concede they were aware of this issue as early as April 16, 2025, because motions to compel initial discovery based, in part, on their failures to respond to the RFAs were also transmitted to their then-counsel. The SRE Defendants concede, "counsel was aware of the discovery dispute, but no relief was sought." (Suppl. Motion, p. 5:19-20.) The SRE Defendants state that they "reasonably believed that counsel would take appropriate action," but "no motion was brought to withdraw or set aside the resulting deemed admissions." (Suppl. Motion, p. 6:3-6.)

If the SRE Defendants intended to seek relief from the Court's order deeming matters admitted, they needed to do so within six (6) months after entry of the order deeming matters admitted. See Code Civ. Proc., § 473 (b). The SRE Defendants concede that they were aware of Plaintiffs' efforts to deem matters admitted as early as April 16, 2025, when Plaintiffs transmitted their motion to deem matters admitted to then-counsel for the SRE Defendants. Defendants concede that no motion was brought to withdraw or set aside the order deeming matters admitted.

On July 17, 2025, the Court deemed matters admitted against Marina and SRE. (See Minute Order dated July 17, 2025, p. 9.) Thus, the SRE Defendants had until approximately mid-January of 2026 (i.e., 6 months after entry of the Court's entry of order deeming matters admitted) to seek relief. The SRE Defendants waited until June 10, 2026, when they filed a supplemental brief in support of a post-trial motion to raise this issue. The SRE Defendants are thus not entitled to relief from the Court's entry of order deeming matters admitted. See Code Civ. Proc., § 473 (b).

In sum, the SRE Defendants are without grounds showing they are entitled to a new trial or to other forms of post-judgment relief. The motion for a new trial and for an order vacating the special verdict and judgment filed by the SRE Defendants is denied. The hearings on the motion for judgment notwithstanding the verdict and the motion for a new trial filed by the Belona Defendants are continued.

CONCLUSION

The SRE Defendants' motion for a new trial and for an order vacating the special verdict and judgment is DENIED.

The hearings on the motion for judgment notwithstanding the verdict and the motion for a new trial filed by the Belona Defendants are CONTINUED. The Court EXTENDS its order temporarily staying enforcement of the judgment to the continued hearing date.

Plaintiffs are ORDERED to give notice.

DATED: August 3, 2026

Lee Arian

Judge of the Superior Court